A Framework for Ethical Decision Making

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This document is designed as an introduction to thinking ethically. Read more about what the framework can (and cannot) do.

We all have an image of our better selves—of how we are when we act ethically or are "at our best." We probably also have an image of what an ethical community, an ethical business, an ethical government, or an ethical society should be. Ethics really has to do with all these levels—acting ethically as individuals, creating ethical organizations and governments, and making our society as a whole more ethical in the way it treats everyone.

What is Ethics?

Ethics refers to standards and practices that tell us how human beings ought to act in the many situations in which they find themselves—as friends, parents, children, citizens, businesspeople, professionals, and so on. Ethics is also concerned with our character. It requires knowledge, skills, and habits.

It is helpful to identify what ethics is NOT:

- **Ethics is not the same as feelings**. Feelings do provide important information for our ethical choices. However, while some people have highly developed habits that make them feel bad when they do something wrong, others feel good even though they are doing something wrong. And, often, our feelings will tell us that it is uncomfortable to do the right thing if it is difficult.
- **Ethics is not the same as religion**. Many people are not religious but act ethically, and some religious people act unethically. Religious traditions can, however, develop and advocate for high ethical standards, such as the Golden Rule.
- **Ethics is not the same thing as following the law.** A good system of law does incorporate many ethical standards, but law can deviate from what is ethical. Law can become ethically corrupt—a function of power alone and designed to serve the interests of narrow groups. Law may also have a difficult time designing or enforcing standards in some important areas and may be slow to address new problems.
- **Ethics is not the same as following culturally accepted norms**. Cultures can include both ethical and unethical customs, expectations, and behaviors. While assessing norms, it is important to recognize how one's ethical views can be limited by one's own cultural perspective or background, alongside being culturally sensitive to others.
- **Ethics is not science**. Social and natural science can provide important data to help us make better and more informed ethical choices. But science alone does not tell us what we ought to do. Some things may be scientifically or technologically possible and yet unethical to develop and deploy.

Six Ethical Lenses

If our ethical decision-making is not solely based on feelings, religion, law, accepted social practice, or science, then on what basis can we decide between right and wrong, good and bad? Many philosophers, ethicists, and theologians have helped us answer this critical question. They have suggested a variety of different lenses that help us perceive ethical dimensions. Here are six of them:

The Rights Lens

Some suggest that the ethical action is the one that best protects and respects the moral rights of those affected. This approach starts from the belief that humans have a dignity based on their human nature per se or on their ability to choose freely what they do with their lives. On the basis of such dignity, they have a right to be treated as ends in themselves and not merely as means to other ends. The list of moral rights—including the rights to make one's own choices about what kind of life to lead, to be told the truth, not to be injured, to a degree of privacy, and so on—is widely debated; some argue that non-humans have rights, too. Rights are also often understood as implying duties—in particular, the duty to respect others' rights and dignity.

(For further elaboration on the rights lens, please see our essay, "Rights.")

The Justice Lens

Justice is the idea that each person should be given their due, and what people are due is often interpreted as fair or equal treatment. Equal treatment implies that people should be treated as equals according to some defensible standard such as merit or need, but not necessarily that everyone should be treated in the exact same way in every respect. There are different types of justice that address what people are due in various contexts. These include social justice (structuring the basic institutions of society), distributive justice (distributing benefits and burdens), corrective justice (repairing past injustices), retributive justice (determining how to appropriately punish wrongdoers), and restorative or transformational justice (restoring relationships or transforming social structures as an alternative to criminal punishment).

(For further elaboration on the justice lens, please see our essay, "Justice and Fairness.")

The Utilitarian Lens

Some ethicists begin by asking, "How will this action impact everyone affected?"—emphasizing the consequences of our actions. Utilitarianism, a results-based approach, says that the ethical action is the one that produces the greatest balance of good over harm for as many stakeholders as possible. It requires an accurate determination of the likelihood of a particular result and its impact. For example, the ethical corporate action, then, is the one that produces the greatest good and does the least harm for all who are affected—customers, employees, shareholders, the community, and the environment. Cost/benefit analysis is another consequentialist approach.

(For further elaboration on the utilitarian lens, please see our essay, "Calculating Consequences.")

The Common Good Lens

According to the common good approach, life in community is a good in itself and our actions should contribute to that life. This approach suggests that the interlocking relationships of society are the basis of ethical reasoning and that respect and compassion for all others—especially the vulnerable—are requirements of such reasoning. This approach also calls attention to the common conditions that are important to the welfare of everyone—such as clean air and water, a system of laws, effective police and fire departments, health care, a public educational system, or even public recreational areas. Unlike the utilitarian lens, which sums up and aggregates goods for every individual, the common good lens highlights mutual concern for the shared interests of all members of a community.

(For further elaboration on the common good lens, please see our essay, "The Common Good.")

The Virtue Lens

A very ancient approach to ethics argues that ethical actions ought to be consistent with certain ideal virtues that provide for the full development of our humanity. These virtues are dispositions and habits that enable us to act according to the highest potential of our character and on behalf of values like truth and beauty. Honesty, courage, compassion, generosity, tolerance, love, fidelity, integrity, fairness, self-control, and prudence are all examples of virtues. Virtue ethics asks of any action, "What kind of person will I become if I do this?" or "Is this action consistent with my acting at my best?"

(For further elaboration on the virtue lens, please see our essay, "Ethics and Virtue.")

The Care Ethics Lens

Care ethics is rooted in relationships and in the need to listen and respond to individuals in their specific circumstances, rather than merely following rules or calculating utility. It privileges the flourishing of embodied individuals in their relationships and values interdependence, not just independence. It relies on empathy to gain a deep appreciation of the interest, feelings, and viewpoints of each stakeholder, employing care, kindness, compassion, generosity, and a concern for others to resolve ethical conflicts. Care ethics holds that options for resolution must account for the relationships, concerns, and feelings of all stakeholders. Focusing on connecting intimate interpersonal duties to societal duties, an ethics of care might counsel, for example, a more holistic approach to public health policy that considers food security, transportation access, fair wages, housing support, and environmental protection alongside physical health.

(For further elaboration on the care ethics lens, please see our essay, "Care Ethics.")

Using the Lenses

Each of the lenses introduced above helps us determine what standards of behavior and character traits can be considered right and good. There are still problems to be solved, however.

The first problem is that we may not agree on the content of some of these specific lenses. For example, we may not all agree on the same set of human and civil rights. We may not agree on what constitutes the common good. We may not even agree on what is a good and what is a harm.

The second problem is that the different lenses may lead to different answers to the question "What is ethical?" Nonetheless, each one gives us important insights in the process of deciding what is ethical in a particular circumstance.

Making Decisions

Making good ethical decisions requires a trained sensitivity to ethical issues and a practiced method for exploring the ethical aspects of a decision and weighing the considerations that should impact our choice of a course of action. Having a method for ethical decision-making is essential. When practiced regularly, the method becomes so familiar that we work through it automatically without consulting the specific steps.

The more novel and difficult the ethical choice we face, the more we need to rely on discussion and dialogue with others about the dilemma. Only by careful exploration of the problem, aided by the insights and different perspectives of others, can we make good ethical choices in such situations.

The following framework for ethical decision-making is intended to serve as a practical tool for exploring ethical dilemmas and identifying ethical courses of action.

A Framework for Ethical Decision Making

Identify the Ethical Issues

1. Could this decision or situation be damaging to someone or to some group, or unevenly beneficial to people? Does this decision involve a choice between a good and bad alternative, or perhaps between two “goods” or between two “bads”?
2. Is this issue about more than solely what is legal or what is most efficient? If so, how?

Get the Facts

3. What are the relevant facts of the case? What facts are not known? Can I learn more about the situation? Do I know enough to make a decision?
4. What individuals and groups have an important stake in the outcome? Are the concerns of some of those individuals or groups more important? Why?
5. What are the options for acting? Have all the relevant persons and groups been consulted? Have I identified creative options?

Evaluate Alternative Actions

6. Evaluate the options by asking the following questions:

- Which option best respects the rights of all who have a stake? (The Rights Lens)
- Which option treats people fairly, giving them each what they are due? (The Justice Lens)
- Which option will produce the most good and do the least harm for as many stakeholders as possible? (The Utilitarian Lens)
- Which option best serves the community as a whole, not just some members? (The Common Good Lens)
- Which option leads me to act as the sort of person I want to be? (The Virtue Lens)
- Which option appropriately takes into account the relationships, concerns, and feelings of all stakeholders? (The Care Ethics Lens)

Choose an Option for Action and Test It

7. After an evaluation using all of these lenses, which option best addresses the situation?
8. If I told someone I respect (or a public audience) which option I have chosen, what would they say?
9. How can my decision be implemented with the greatest care and attention to the concerns of all stakeholders?

Implement Your Decision and Reflect on the Outcome

10. How did my decision turn out, and what have I learned from this specific situation? What (if any) follow-up actions should I take?

This framework for thinking ethically is the product of dialogue and debate at the Markkula Center for Applied Ethics at Santa Clara University. Primary contributors include Manuel Velasquez, Dennis Moberg, Michael J. Meyer, Thomas Shanks, Margaret R. McLean, David DeCosse, Claire André, Kirk O. Hanson, Irina Raicu, and Jonathan Kwan. It was last revised on November 5, 2021.

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Rights

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The Second Amendment to the United States Constitution grants Americans the right "to keep and bear arms." For many years, however, Americans have been divided about what that right means. Is it fundamental? Can it be regulated? How should it be balanced against other rights?

What is a Right?
Many moral controversies today are couched in the language of rights. Indeed, we seem to have witnessed an explosion of appeals to rights—gay rights, prisoners' rights, animal rights, smokers' rights, fetal rights, and employee rights. The appeal to rights has a long tradition. The American Declaration of Independence asserted that "all men...are endowed by their Creator with certain unalienable rights...among these are life, liberty, and the pursuit of happiness." In 1948, the United Nations published the Universal Declaration of Human Rights, stating that all human beings have "the right to own property,...the right to work,...the right to just and favorable remuneration,...[and] the right to rest and leisure."

What is a right? A right is a justified claim on others. For example, if I have a right to freedom, then I have a justified claim to be left alone by others. Turned around, I can say that others have a duty or responsibility to leave me alone. If I have a right to an education, then I have a justified claim to be provided with an education by society.

The "justification" of a claim is dependent on some standard acknowledged and accepted not just by the claimant, but also by society in general. The standard can be as concrete as the Constitution, which guarantees the right of free speech and assures that every American accused of a crime "shall enjoy the right to a speedy trial by an impartial jury," or a local law that spells out the legal rights of landlords and tenants.

Moral rights are justified by moral standards that most people acknowledge, but which are not necessarily codified in law; these standards have also, however, been interpreted differently by different people.

Negative and Positive Rights
One of the most important and influential interpretations of moral rights is based on the work of Immanuel Kant, an eighteenth century philosopher. Kant maintained that each of us has a worth or a dignity that must be respected. This dignity makes it wrong for others to abuse us or to use us against our will. Kant expressed this idea in a moral principle: humanity must always be treated as an end, not merely as a means. To treat a person as a mere means is to use a person to advance one's own interest. But to treat a person as an end is to respect that person's dignity by allowing each the freedom to choose for himself or herself.

Kant's principle is often used to justify both a fundamental moral right, the right to freely choose for oneself, and also rights related to this fundamental right. These related rights can be grouped into two broad categories—negative and positive rights. Negative rights, such as the right to privacy, the right not to be killed, or the right to do what one wants with one's property, are rights that protect some form of human freedom or liberty, . These rights are called negative

rights because such rights are a claim by one person that imposes a "negative" duty on all others—the duty not to interfere with a person's activities in a certain area. The right to privacy, for example, imposes on us the duty not to intrude into the private activities of a person.

Kant's principle is also often used to justify positive or, as they are often called, welfare rights. Where negative rights are "negative" in the sense that they claim for each person a zone of non-interference from others, positive rights are "positive" in the sense that they claim for each person the positive assistance of others in fulfilling basic constituents of human well-being like health and education. In moral and political philosophy, these basic human needs are often referred to as "welfare" concerns (thus this use of the term "welfare" is similar to but not identical with the common American usage of "welfare" to refer to government payments to the poor). Many people argue that a fundamental right to freedom is worthless if people aren't able to exercise that freedom. A right to freedom, then, implies that every human being also has a fundamental right to what is necessary to secure a minimum level of well being. Positive rights, therefore, are rights that provide something that people need to secure their well being, such as a right to an education, the right to food, the right to medical care, the right to housing, or the right to a job. Positive rights impose a positive duty on us—the duty actively to help a person to have or to do something. A young person's right to an education, for example, imposes on us a duty to provide that young person with an education. Respecting a positive right, then requires more than merely not acting; positive rights impose on us the duty to help sustain the welfare of those who are in need of help.

Conflict of Rights

Whenever we are confronted with a moral dilemma, we need to consider whether the action would respect the basic rights of each of the individuals involved. How would the action affect the basic well-being of those individuals? How would the action affect the negative or positive freedom of those individuals? Would it involve manipulation or deception—either of which would undermine the right to truth that is a crucial personal right? Actions are wrong to the extent that they violate the rights of individuals.

Sometimes the rights of individuals will come into conflict and one has to decide which right has priority. We may all agree, for example, that everyone has a right to freedom of association as well as a right not to be discriminated against. But suppose a private club has a policy that excludes women from joining. How do we balance the right to freedom of association—which would permit the club to decide for itself whom to admit—against the right not to be discriminated against—which requires equal treatment of women? In cases such as this, we need to examine the freedoms or interests at stake and decide which of the two is the more crucial for securing human dignity. For example, is free association or equality more essential to maintaining our dignity as persons?

Rights, then, play a central role in ethics. Attention to rights ensures that the freedom and well-being of each individual will be protected when others threaten that freedom or well-being. If an individual has a moral right, then it is morally wrong to interfere with that right even if large numbers of people would benefit from such interference.

But rights should not be the sole consideration in ethical decision-making. In some instances, the social costs or the injustice that would result from respecting a right are too great, and accordingly, that right may need to be limited. Moreover, an emphasis on rights tends to limit our vision of what the "moral life" entails. Morality, it's often argued, is not just a matter of not interfering with the rights of others. Relying exclusively on a rights approach to ethics tends to emphasize the individual at the expense of the community. And, while morality does call on us to respect the uniqueness, dignity, and autonomy of each individual, it also invites us to recognize our relatedness—that sense of community, shared values, and the common good which lends itself to an ethics of care, compassion, and concern for others.

The views expressed do not necessarily represent the position of the Markkula Center for Applied Ethics at Santa Clara University.

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Ethics and Virtue

Manuel Velasquez, Claire Andre, Thomas Shanks, S.J., and Michael J. Meyer

For many of us, the fundamental question of ethics is, "What should I do?" or "How should I act?" Ethics is supposed to provide us with "moral principles" or universal rules that tell us what to do. Many people, for example, read passionate adherents of the moral principle of utilitarianism: "Everyone is obligated to do whatever will achieve the greatest good for the greatest number." Others are just as devoted to the basic principle of Immanuel Kant: "Everyone is obligated to act only in ways that respect the human dignity and moral rights of all persons."

Moral principles like these focus primarily on people's actions and doings. We "apply" them by asking what these principles require of us in particular circumstances, e.g., when considering whether to lie or to commit suicide. We also apply them when we ask what they require of us as professionals, e.g., lawyers, doctors, or business people, or what they require of our social policies and institutions. In the last decade, dozens of ethics centers and programs devoted to "business ethics", "legal ethics", "medical ethics", and "ethics in public policy" have sprung up. These centers are designed to examine the implications moral principles have for our lives.

But are moral principles all that ethics consists of? Critics have rightly claimed that this emphasis on moral principles smacks of a thoughtless and slavish worship of rules, as if the moral life was a matter of scrupulously checking our every action against a table of do's and don'ts. Fortunately, this obsession with principles and rules has been recently challenged by several ethicists who argue that the emphasis on principles ignores a fundamental component of ethics--virtue. These ethicists point our that by focusing on what people should do or how people should act, the "moral principles approach" neglects the more important issue--what people should be. In other words, the fundamental question of ethics is not "What should I do?" but "What kind of person should I be?"

According to "virtue ethics", there are certain ideals, such as excellence or dedication to the common good, toward which we should strive and which allow the full development of our humanity. These ideals are discovered through thoughtful reflection on what we as human beings have the potential to become.

"Virtues" are attitudes, dispositions, or character traits that enable us to be and to act in ways that develop this potential. They enable us to pursue the ideals we have adopted. Honesty, courage, compassion, generosity, fidelity, integrity, fairness, self-control, and prudence are all examples of virtues.

How does a person develop virtues? Virtues are developed through learning and through practice. As the ancient philosopher Aristotle suggested, a person can improve his or her character by practicing self-discipline, while a good character can be corrupted by repeated self-indulgence. Just as the ability to run a marathon develops through much training and practice, so too does our capacity to be fair, to be courageous, or to be compassionate.

Virtues are habits. That is, once they are acquired, they become characteristic of a person. For example, a person who has developed the virtue of generosity is often referred to as a generous person because he or she tends to be generous in all circumstances. Moreover, a person who has developed virtues will be naturally disposed to act in ways that are consistent with moral principles. The virtuous person is the ethical person.

At the heart of the virtue approach to ethics is the idea of "community". A person's character traits are not developed in isolation, but within and by the communities to which he or she belongs, including family, church, school, and other private and public associations. As people grow and mature, their personalities are deeply affected by the values that their communities prize, by the personality traits that their communities encourage, and by the role models that their communities put forth for imitation through traditional stories, fiction, movies, television, and so on. The virtue approach urges us to pay attention to the contours of our communities and the habits of character they encourage and instill.

The moral life, then, is not simply a matter of following moral rules and of learning to apply them to specific situations. The moral life is also a matter of trying to determine the kind of people we should be and of attending to the development of character within our communities and ourselves.

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Calc□ lating Conseq□ ences:The Utilitarian Approach to Ethics

Imagine that the U.S. Central Intelligence Agency gets wind of a plot to set off a dirty bomb in a major American city. Agents capture a suspect who, they believe, has information about where the bomb is planted. Is it permissible for them to torture the suspect into revealing the bomb's whereabouts? Can the dignity of one individual be violated in order to save many others?

Greatest Balance of Goods Over Harms

If you answered yes, you were probably using a form of moral reasoning called "utilitarianism." Stripped down to its essentials, utilitarianism is a moral principle that holds that the morally right course of action in any situation is the one that produces the greatest balance of benefits over harms for everyone affected. So long as a course of action produces maximum benefits for everyone, utilitarianism does not care whether the benefits are produced by lies, manipulation, or coercion.

Many of us use this type of moral reasoning frequently in our daily decisions. When asked to explain why we feel we have a moral duty to perform some action, we often point to the good that will come from the action or the harm it will prevent. Business analysts, legislators, and scientists weigh daily the resulting benefits and harms of policies when deciding, for example, whether to invest resources in a certain public project, whether to approve a new drug, or whether to ban a certain pesticide.

Utilitarianism offers a relatively straightforward method for deciding the morally right course of action for any particular situation we may find ourselves in. To discover what we ought to do in any situation, we first identify the various courses of action that we could perform. Second, we determine all of the foreseeable benefits and harms that would result from each course of action for everyone affected by the action. And third, we choose the course of action that provides the greatest benefits after the costs have been taken into account.

The principle of utilitarianism can be traced to the writings of Jeremy Bentham, who lived in England during the eighteenth and nineteenth centuries. Bentham, a legal reformer, sought an objective basis that would provide a publicly acceptable norm for determining what kinds of laws England should enact. He believed that the most promising way of reaching such an agreement was to choose that policy that would bring about the greatest net benefits to society once the harms had been taken into account. His motto, a familiar one now, was "the greatest good for the greatest number."

Over the years, the principle of utilitarianism has been expanded and refined so that today there are many variations of the principle. For example, Bentham defined benefits and harms in terms of pleasure and pain. John Stuart Mill, a great 19th century utilitarian figure, spoke of benefits and harms not in terms of pleasure and pain alone but in terms of the quality or intensity of such pleasure and pain. Today utilitarians often describe benefits and harms in terms of the satisfaction of personal preferences or in purely economic terms of monetary benefits over monetary costs.

Utilitarians also differ in their views about the kind of question we ought to ask ourselves when making an ethical decision. Some utilitarians maintain that in making an ethical decision, we must ask ourselves: "What effect will my doing this act in this situation have on the general balance of good over evil?" If

lying would produce the best consequences in a particular situation, we ought to lie. Others, known as rule utilitarians, claim that we must choose that act that conforms to the general rule that would have the best consequences. In other words, we must ask ourselves: "What effect would everyone's doing this kind of action have on the general balance of good over evil?" So, for example, the rule "to always tell the truth" in general promotes the good of everyone and therefore should always be followed, even if in a certain situation lying would produce the best consequences. Despite such differences among utilitarians, however, most hold to the general principle that morality must depend on balancing the beneficial and harmful consequences of our conduct.

Problems With Utilitarianism

While utilitarianism is currently a very popular ethical theory, there are some difficulties in relying on it as a sole method for moral decision-making. First, the utilitarian calculation requires that we assign values to the benefits and harms resulting from our actions and compare them with the benefits and harms that might result from other actions. But it's often difficult, if not impossible, to measure and compare the values of certain benefits and costs. How do we go about assigning a value to life or to art? And how do we go about comparing the value of money with, for example, the value of life, the value of time, or the value of human dignity? Moreover, can we ever be really certain about all of the consequences of our actions? Our ability to measure and to predict the benefits and harms resulting from a course of action or a moral rule is dubious, to say the least.

Perhaps the greatest difficulty with utilitarianism is that it fails to take into account considerations of justice. We can imagine instances where a certain course of action would produce great benefits for society, but they would be clearly unjust. During the apartheid regime in South Africa in the last century, South African whites, for example, sometimes claimed that all South Africans—including blacks—were better off under white rule. These whites claimed that in those African nations that have traded a whites-only government for a black or mixed one, social conditions have rapidly deteriorated. Civil wars, economic decline, famine, and unrest, they predicted, will be the result of allowing the black majority of South Africa to run the government. If such a prediction were true—and the end of apartheid has shown that the prediction was false—then the white government of South Africa would have been morally justified by utilitarianism, in spite of its injustice.

If our moral decisions are to take into account considerations of justice, then apparently utilitarianism cannot be the sole principle guiding our decisions. It can, however, play a role in these decisions. The principle of utilitarianism invites us to consider the immediate and the less immediate consequences of our actions. Given its insistence on summing the benefits and harms of all people, utilitarianism asks us to look beyond self-interest to consider impartially the interests of all persons affected by our actions. As John Stuart Mill once wrote:

The happiness which forms the utilitarian standard of what is right in conduct, is not...(one's) own happiness, but that of all concerned. As between his own happiness and that of others, utilitarianism requires him to be as strictly impartial as a disinterested and benevolent spectator.

In an era today that some have characterized as "the age of self-interest," utilitarianism is a powerful reminder that morality calls us to look beyond the self to the good of all.

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